

Re: Fw: Unlicensed Use of The Associated Press Imagery - Reference Number: 5229-7053-7750 , United Kingdom

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

30 October 2023 at 12:18

To: Kelly Bassett <KellyBassett@queenspark.brighton-hove.sch.uk>

Cc: Emma Gale <EmmaGale@queenspark.brighton-hove.sch.uk>, Victoria Hodkinson <victoria.hodkinson@dataprotection.education>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi Kelly,

Thank you for your email. I have also copied Victoria into the email, who is our legal director who may be able to provide additional advice. My first thoughts on looking through this are that there are companies that do look through websites and check whether copyrighted images are being used, and they may do this even when they are not the actual owners of the image, but they know you are not. However, I would strongly advise that copyrighted images are never used as it is illegal to do so. In this particular case, the image is on a piece of work that is from September 2022, so I would also advise removing any old or out of date information from the website regularly. It is the school's responsibility to police this, not your website provider.

You don't advise on whether anyone has written back to the company or not as they say they have contacted you previously?

If the image(s) haven't been removed from the website then I would advise that they are removed - not just the page but the actual image file in the back end immediately.

I would also advise that all staff are reminded that copyrighted images are not used even if the work is considered for the classroom, especially if it could potentially end up on the school website like this.

Hopefully Victoria may be able to advise further for a reply back to them, although strictly speaking this is not a data protection issue as it does not involve personal data.

Many thanks,
Tammy

On Mon, 30 Oct 2023 at 11:54, Kelly Bassett <KellyBassett@queenspark.brighton-hove.sch.uk> wrote:

Good morning Tammy,

I am wondering if you have a moment to guide me through this email?

I have looked through on trustpilot to try and gain some more information about the company. I have attached the link below.

I am currently trying to make contact with our web builder also.

Any advice would be greatly appreciated, thank you.

<https://uk.trustpilot.com/review/picrights.com>

Picrights is rated Bad

Based on 148 reviews

**Picrights is rated "Bad" with 1.4 / 5 on Trustpilot**

Do you agree with Picrights's TrustScore? Voice your opinion today and hear what 148 customers have already said.

uk.trustpilot.com

Best wishes,
Kelly Bassett
School Business Manager

[Queen's Park Primary School](https://www.queenspark.brighton-hove.sch.uk/) | Park Street | Brighton | BN2 0BN |

School Office: 01273 686 822

w ~ <https://www.queenspark.brighton-hove.sch.uk/>



"A Kind and Inclusive Learning Community with High Expectations for All"

Queen's Park Primary School respects the work life balance of its staff and other agencies. If this email has been sent outside normal working hours, or within teaching sessions, there is no expectation for recipients to provide an immediate response.

Notice to recipient:

The information contained in this electronic mail message is intended only for the use of the individual to whom it is addressed and may contain information which is privileged and confidential, the disclosure of which is prohibited by law. If the reader of this message is not the intended recipient, please note that any dissemination, distribution or copying of this communication is strictly prohibited. If you have received this communication in error, please notify the sender immediately. Thank you in anticipation of your co-operation.

From: Queens Park Primary - Office <admin@queenspark.brighton-hove.sch.uk>
Sent: 30 October 2023 10:46 AM
To: Kelly Bassett <KellyBassett@queenspark.brighton-hove.sch.uk>
Subject: Fw: Unlicensed Use of The Associated Press Imagery - Reference Number: 5229-7053-7750 , United Kingdom

This has come through. Eek!

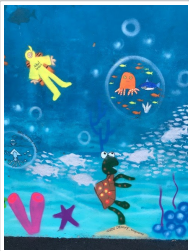
This is the link on the website
<https://www.queenspark.brighton-hove.sch.uk/home-learning/homework-options-year-4-autumn-term-1/>

Many thanks

Beth

Queen's Park Primary School Office

Queen's Park Primary School | Park Street | Brighton | BN2 0BN
School Office: 01273 686 822
w ~ <https://www.queenspark.brighton-hove.sch.uk/>



Queen's Park Primary School, Brighton

On behalf of the pupils, staff and governors at Queen's Park Primary School, I would like to warmly welcome you to our school website. I feel incredibly lucky to lead Queen's Park. We are proud of our children, staff and the wider community and hope that this website provides you with a little glimpse into the wonderful things we do and achieve here. The staff at ...

www.queenspark.brighton-hove.sch.uk



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From: ResolveUK@picrights.com <ResolveUK@picrights.com>
Sent: 23 October 2023 12:43
To: Queens Park Primary - Office <admin@queenspark.brighton-hove.sch.uk>
Subject: Unlicensed Use of The Associated Press Imagery - Reference Number: 5229-7053-7750 , United Kingdom



PicRights on behalf of **The Associated Press**
133 Whitechapel High Street, London E1 7QA, United Kingdom
Telephone: 020 3600 0607, <https://www.picrights.com/>

23 October 2023,
Queen's Park Primary School
Park Street
Brighton, East Sussex, BN2 0BN
United Kingdom

Unlicensed Use of The Associated Press Imagery - Reference Number: 5229-7053-7750 - Queen's Park Primary School

If this matter has already been resolved, please disregard this communication.

PicRights provides copyright compliance services to third-party content owners, including The Associated Press. For further information, please visit <https://www.ap.org/contact-us/copyright-compliance>.

We recently sent you a notice that The Associated Press's imagery is being used on your website, social media or in media accessible from your website. According to The Associated Press's records, neither The Associated Press nor any of its partners have issued a valid licence to your organisation for the use of that imagery.

A copy of the imagery and the screen capture of the usage of this imagery found on your website, social media or in media accessible from your website are included at the end of this correspondence and can be viewed by visiting:

<https://resolve.picrights.com/522970537750> / Password: 421870092

Copies of our prior correspondence are viewable at the following links for your reference:

Oct 2, 2023 <https://history.picrights.com/render/HistoryTemplate/30557/1QSCZCY>

To Resolve This Matter - Reference Number 5229-7053-7750:

We kindly ask you to take one of the following actions **within 14 days** of the date of this correspondence:

- If your organisation holds a valid licence or other authorisation for the use of the imagery, please provide the corresponding document by visiting <https://resolve.picrights.com/522970537750> / Password: 421870092 and clicking on the "I have a licence..." link.
If such documentation is confirmed by The Associated Press, the matter will be closed.
- If your organisation does not hold a valid licence or other authorisation for the use of the imagery, regardless of whether or not you were aware of the licensing requirements for the use of the imagery, please **remove the imagery** from your website, social media or in media accessible from your website **and** make a settlement payment of **£634.00**. The payment options are listed at the end of this email.

Please, contact us with your reference number 5229-7053-7750 at ResolveUK@picrights.com :

- if you would like to discuss the usage of the imagery going forward,
- if you have other requests in relation to this email,
- or if you believe you have received this email in error.

We fully appreciate that this is a very difficult time. With that in mind, we would welcome the opportunity to discuss this matter with you, in the hope that we can achieve a resolution.

On behalf of PicRights and The Associated Press, thank you for your cooperation and we look forward to assisting you in resolving this matter.

Sincerely,
Arthur LAVIE
Copyright Compliance Agent
UK Department

PicRights

ResolveUK@picrights.com

To learn more about PicRights copyright and this specific matter please visit:

<https://resolve.picrights.com/522970537750> / Password: 421870092.

This correspondence is without prejudice to PicRights's and The Associated Press's, rights and remedies, all of which are expressly reserved.

WARNING: This e-mail message is intended only for the named recipient(s) above and may contain information that is privileged, confidential, subject to copyright and/or exempt from disclosure under applicable law. You are hereby notified that any unauthorised use of this transmission is strictly prohibited. If you are not the named recipient(s), please immediately notify the sender and delete this e-mail message.

PicRights UK Limited, Private limited Company, Registration Number 13028003

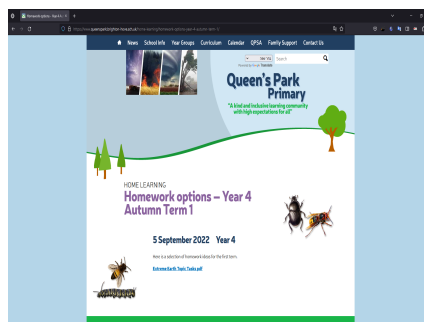
DETAILS

**Catalog Image No.
100731021398**



Proof of use under

<https://www.queenspark.brighton-hove.sch.uk/home-learning/homework-options-year-4-autumn-term-1/>



SETTLEMENT PAYMENT FOR PAST USAGE: £634.00

Please make settlement payment by using one of the following payment options:

- **Online payment** via Credit/Debit Card, Amex or PayPal:
<https://resolve.picrights.com/Home/Settlement/5229-7053-7750> / Password: 421870092
- **Bank Transfer** payment to PicRights

United Kingdom Account

Bank name Revolut/ Modulr FS Limited
Account name PICRIGHTS UK LIMITED
Sort Code 04-00-75
Account number 93933223

Switzerland Account

Bank Name UBS Switzerland AG
Account Name PicRights Europe GmbH
IBAN CH23 0021 6216 5210 9162 W
BIC UBSWCHZH80A
Address Unterdorfstrasse 12, 8808 Pfäffikon SZ, Switzerland

Please include reference number 5229-7053-7750 with the bank transfer.

Cheque and partial payment are not accepted.

IMPORTANT NOTES

- Please be aware that removal of the imagery alone will not resolve this issue; we want to ensure that the creators of the imagery are compensated for the use of their work on your website, social media or in media accessible from your website.
 - You may have been unaware that this imagery was subject to copyright. However, copyright infringement can occur regardless of knowledge or intent. Being unaware of licence requirements does not change liability.
- You may find further information in the FAQ section at <https://resolve.picrights.com/522970537750> / Password: 421870092.

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You can visit our website at <http://www.brighton-hove.gov.uk>

Please consider the environment, only print out this email if absolutely necessary. 

Please Note: Both incoming and outgoing Emails may be monitored and/or recorded in line with current legislation.